

**WALKER, et al v JODY A TAYLOR and SHARON L CLARK, TRUSTEES OF THE
DOUBLE SPRINGS RANCH TRUST, et al**

24CV47475

DEFENDANT’S MOTION FOR PRELIMINARY INJUNCTION

This civil action stems from dispute concerning an easement and questions over title to a certain stretch of property. Randy Walker (“Walker”) and Jessica Albonico (“Albonico”) (collectively, “Plaintiffs”) filed this action to determine the parties’ respective rights and duties, as well as to quiet title. Defendants are Jody A. Taylor (“Taylor”) and Sharon L. Clark (“Clark”) Trustees of the Double Springs Ranch Trust; Carol A. Gates, Trustee of the Carol A. Gates Family Trust (“Gates”); Perry Williard; Cheryl Willard Alden R. Houbein and Virginia A Houbein, Trustees of the Houbein Revocable Trust DTD March 21, 1996; John M. Taylor, Katherine L. Taylor, and Mark Van Lobel Sels and Mary Van Lobel Sels (collectively “Van Loben Sels”).

On April 29, 2025, Taylor and Clark as Trustees, Gate as Trustee, and the Van Lobel Sels filed a Cross-Complaint against Plaintiffs for declaratory relief, quiet title, trespass, permanent injunction, and abuse of process. For ease of reference, the Court refers to the cross-claiming defendants collectively as “Cross-Complainants.”

On June 18, 2025, the Court entered a temporary restraining order against Plaintiffs and an Order to Show Cause (“OSC”) requiring Plaintiffs to show cause as to “why a preliminary injunction should not be ordered restraining and enjoining Plaintiffs from entering, traversing, or performing any acts of use upon the Cross-Complainants’ real property.”

Now before the Court is Cross-Complainants’ motion for preliminary injunction and the order to show cause as to why Plaintiffs should not be subject to an injunction. The motion is opposed.

I. Background Facts and Relevant Procedural History

Taylor, Clark and Gates are joint legal owners of the following parcels: Calaveras County APN 040002009, 046017017, 046020001, 046020008, 046017052, and 046017018. The Van Lobel Sels are owners of several parcels, in particular to this dispute those known as Calaveras County APN 046017053 and APN 046026019 which prior to 2018 were owned by the City of Stockton for decades. For ease of reference,

the Court will refer to Cross-Claimants' property collectively as the "Taylor-Van Loben Sels Property."

Plaintiffs are the owners of approximately 20 acres off of Highway 12, near Hogan Dam, Calaveras County (APN 046-026-006) ("Walker Property.") (Declaration of Randy Walker ("Walker Decl.") ¶ 3.) According to Walker, his family has continuously used the land for either recreational or grazing purposes since the time it was a larger parcel and continuing once it was the 20 acres. (*Id.* ¶ 8.) Plaintiffs allege that access to their property has always been from Highway 12, starting over land not owned by the Defendants. (*Id.* ¶ 9.) Plaintiffs allege that Defendants have repeatedly observed Plaintiffs' continued use of the access point, have never stopped Plaintiffs, and have even provided Plaintiffs with gate codes to ensure unrestricted access. (*Id.* ¶ 9.) Plaintiffs allege that Walker has assisted with road repairs as well. (*Id.* ¶ 10.)

Plaintiffs' property is surrounded by portions of Taylor-Van Loben Sels Property. According to the Cross-Complaint, Walker was given revocable permission to cross the Taylor-Van Loben Sels Property to reach the Walker Property. This permission was revoked in 2022. Cross-Complainants allege that there is no easement and that Plaintiffs are impermissibly using the Taylor-Van Loben Sels Property.

II. Legal Standard and Discussion

When determining whether to issue a preliminary injunction, the court considers two interrelated questions: (1) the likelihood that the moving party will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; *see also Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 206; Code Civ. Proc., § 526.)

A preliminary injunction may be issued "when it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action." (Code Civ. Proc. § 526(a)(2).)

A. Likelihood of Success on the Merits

The Cross-Complaints bring causes of action for declaratory relief, quiet title, trespass, permanent injunction, and abuse of process. At the heart of each of these causes of action is Cross-Complainants' contention that the Plaintiffs have no easement rights and

should not be accessing any portion of the Taylor-Van Loben Sels Property. For purposes of their request for an injunction, Cross-Complainants seek to exercise their legal rights to prevent Plaintiffs from potentially creating an easement by adverse possession.

In order to obtain an easement by adverse possession, Plaintiffs need to show “open and notorious use that is hostile and adverse, continuous and uninterrupted for the five-year statutory period.” (*Felgenhauer v. Soni* (2004) 121 Cal.App.4th 445, 449.) A claimant’s use “is adverse to the owner if the use is made without any express or implied recognition of the owner’s property rights.” (*McBride v. Smith* (2018) 18 Cal.App.5th 1160, 1181.)

An easement by adverse possession “can arise only if the owner had an opportunity to protect his or her rights by taking legal action to prevent the wrongful use, yet failed to do so.” (*Ibid.*) This is precisely what Cross-Complainants seek to prevent by bringing this petition for injunction.

The basis of Plaintiffs’ claims are that they have openly and notoriously used the Taylor-Van Loben Sels Property, including continued use despite any such use rights being explicitly revoked by Cross-Complainants in 2022. At minimum, Cross-Complaints have shown a likelihood of success on the merits for the trespassing claim. They also have, as set forth below, shown that they will be significantly harmed if the injunction is not granted.

B. Balance of Harm to the Parties

The Court must next look at the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554.) The general purpose of a preliminary injunction is often to preserve the status quo. (*Harbor Chevrolet Corp. v. Machinists Local Union 1484* (1959) 173 Cal.App.2^d 380, 384.)

The Court finds that an injunction is proper under Code Civ. Proc. section 526(a)(2) because the “continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” Specifically, if Plaintiffs are not prohibited from accessing and using the Taylor-Van Loben Sels Property, they will likely continue using said property – potentially leading to the creation of an easement by adverse possession. This could cause great or irreparable injury to the Cross-Complainants who could then potentially lose property rights that they currently possess.

Notably, Plaintiffs do not claim that they will suffer any irreparable harm if the injunction is granted. Plaintiffs concede that they have not used their purported easement rights since 2022. (Opp p. 5.) They do not claim that this has caused them significant or irreparable harm. There are no allegations or evidence that traversing the Taylor-Van Loben Sels Property is the only means of ingress or egress from Plaintiffs' Property. There is simply no evidence that if the current status quo -- whereby Plaintiffs do not use the property at issue -- is maintained during the pendency of this litigation that Plaintiffs will suffer any harm.

III. Conclusion

Cross-Complainants' request for preliminary injunction is **GRANTED**. Plaintiffs are therefore prohibited from entering, traversing, or performing any acts of use upon the Cross-Complainants' property, and any real property described in the Complaint, in order to prevent the creation of a prescriptive easement under civil code 1007 pending a full hearing.

The clerk shall provide notice of this ruling to the parties forthwith. Cross-Complainants to prepare a formal Order in conformity with the Ruling and complying with Rule of Court 3.1312.

MECHANICS BANK v TWISTED OAK WINERY, LLC

25CV47803

**PLAINTIFF'S MOTION TO CORRECT CLERICAL ERROR
AND AMEND JUDGMENT NUNC PRO TUNC**

On or about April 10, 2025, Mechanics Bank ("Plaintiff") obtained a default judgment in against Twisted Oak Winery ("Twisted Oak"). (Declaration of Jeffrey B. Kirschenbaum ("Kirschenbaum Decl." ¶ 9.) On May 14, 2025, Plaintiff's counsel inadvertently submitted, and the clerk entered, a default Judgment against Twisted Oak pursuant to Code Civ. Proc. § 585(a), which states that "Defendant was sued only on a contract or judgment of a court of this state for the recovery of money." (*Id.* ¶ 11.) Plaintiff now seeks to amend the judgment to include a judgment of foreclosure in addition to money damages.

I. Background Facts

This action concerns a 120-acre vineyard and winery located in Vallecito, California (the "Property"). In 2004, the Stai Family Trust borrowed the purchase price from Plaintiff and agreed to repay the loan by monthly payments through October 2033. The loan is guaranteed by defendant Twisted Oak, an entity formed by Jeff Stai to own and operate the property. The guaranty is secured by a Deed of Trust given by Twisted Oak, in which Twisted Oak promised to maintain and to protect the Property, and not to cause or permit any nuisance or waste on the property.

On or about October 18, 2004, Plaintiff and the Stai Family Trust entered into a Business Loan Agreement. On that same date, Stai and Mary Stai, as trustees of the Stai Family Trust, executed and delivered to Plaintiff a Promissory Note (the "Note"). The Note evidenced a loan from Plaintiff to the Stai Family Trust ("Borrower") in the principal amount of \$2,546,000 (the "Loan").

The Note is guaranteed by Twisted Oak. Twisted Oak's guarantee is secured by a Deed of Trust made by Twisted Oak in favor Plaintiff, dated October 18, 2004, and filed in the Official Records of Calaveras County on October 29, 2004, as document number 2004-23821 (the "Deed of Trust").

The Deed of Trust irrevocably grants, transfers and assigns to Plaintiff, in trust, with power of sale, all of Twisted Oak's right, title and interest in the real property located at 4280 Red Hill Access Road and 4002 Red Hill Access Road, Vallecito, CA 95251,